

Court No. - 37

Case :- WRIT - C No. - 38783 of 2017

Petitioner :- Ajay Prakash Srivastava And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Hanuman Prasad Dube, Pankaj Dubey

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

The only issue that remains to be inform to the Court is about the final assessment in the matter as the learned counsel for the petitioners submit that the petitioners have no information about any final assessment.

Put up day after tomorrow to enable the learned counsel for the respondent/Electricity Department to inform the Court about the final assessment.

Order Date :- 28.8.2017

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Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Heard Sri Hanuman Prasad Dubey, learned counsel for the petitioners and Sri Chandan Agarwal, learned counsel for the respondent nos. 2 and 3 and the learned Standing Counsel for the respondent nos. 1, 4 and 5.

The challenge raised in this petition is to the citation of recovery dated 30th June, 2017 for electricity dues which the petitioners have been found liable to pay in view of the provisional assessment order dated 9.2.2016 as finalized according to the respondents by the final order of assessment dated 29.3.2016.

The contention of the petitioners is that an FIR of theft was also lodged against which Writ Petition No. 4470 of 2016 was filed that was disposed of on 26th February, 2016 calling upon the petitioners to offer compounding of the offences. A copy of the order passed therein is Annexure No. 4 to the writ petition.

The contention of the petitioners is that two sets of proceedings were initiated, one for assessment and the other for the alleged theft. So far as theft is concerned, the petitioners after the order of the High Court, filed an affidavit before the respondent-Executive Engineer on 17th March, 2016 against which a compounding fee of Rs. 76,000/- was assessed that was deposited by the petitioner on 22nd March, 2016.

So far as assessment proceedings are concerned upon receipt of the provisional assessment order dated 9.2.2016, the petitioners filed an objection on 24.2.2016 and according to the petitioners, the said objections were neither considered nor decided and the final assessment notice dated 29.3.2016 was issued.

Learned counsel for the petitioners submits that recovery proceedings pursuant to the said final assessment notice are invalid inasmuch as the final assessment order itself does not indicate any consideration of the objections

raised by the petitioners.

We had called upon Sri Chandan Agarwal to obtain instructions in the matter and he has produced the instruction received which contains a recital of the aforesaid facts but we do not find the disposal of the objection of the petitioners dated 24.2.2016. The department has proceeded on the affidavit dated 17.3.2016 which appears to have been referred to as a request (*Aavedan*) in the final assessment order dated 29.3.2016. Thus, the said order proceeds on a presumption that keeping in view the multiplier which has to be applied, the assessed amount stood reduced and consequently, the same is the amount recoverable from the petitioners.

Having considered the aforesaid facts, we do not find a consideration on the objections raised by the petitioners in the said final assessment order dated 29.3.2016 and consequently, the recovery of the said amount would be dependent upon any final assessment made in accordance with rules. The final assessment has to be made in terms of Section 126 of the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005.

Consequently, we dispose of this writ petition with a direction to the Executive Engineer to consider the objection dated 24th February, 2016 and pass a fresh order in relation to final assessment within three weeks from the date of the production of a certified copy of the order. The recovery proceedings shall remain in abeyance till such orders are passed by the Executive Engineer and shall be dependent upon the outcome thereof.

The writ petitions stands **disposed of** with the aforesaid directions.

Order Date :- 30.8.2017

S.Chaurasia